

NON-DISCLOSURE AGREEMENT (SYNTHETIC — EVAL FIXTURE)

This Non-Disclosure Agreement (this “Agreement”) is entered into as of the Effective Date by and between Party A and Party B (collectively, the “Parties”) for the purpose of evaluating a potential business relationship.

1. Confidential Information. “Confidential Information” means any information disclosed by one Party to the other Party, whether orally, in writing, or in any other form, that is designated as confidential at the time of disclosure. The Receiving Party shall treat all such information as confidential.

2. Term. This Agreement shall remain in effect for a period of seven (7) years from the Effective Date. After expiration, the Receiving Party shall continue to be bound by the restrictions set forth herein for the remainder of the seven year period.

3. Trade Secrets. With respect to any information disclosed hereunder that constitutes a trade secret, nothing in this Agreement shall restrict the use of residual knowledge retained in the unaided memory of personnel of the Receiving Party, and such use may continue in perpetuity, without time limit, regardless of whether such information continues to qualify as a trade secret under applicable law.

4. Injunctive Relief. The Parties acknowledge that monetary damages may be inadequate to remedy a breach of this Agreement, and that the non-breaching Party shall be entitled to seek injunctive relief and other equitable remedies to prevent or restrain a breach.

5. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of laws principles.

6. Residual Knowledge. Nothing herein shall restrict the use of residual knowledge retained in the unaided memory of personnel of the Receiving Party, provided that such personnel do not intentionally memorize or compile Confidential Information for the purpose of circumventing the obligations of this Agreement.

7. Return of Materials. Upon termination of this Agreement, the Receiving Party shall promptly return or destroy all Confidential Information in its possession, including all copies and extracts thereof, and shall certify in writing such return or destruction.